

In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)

Present:

Mr. Justice Ashish Ranjan Das

And

Mr. Justice Md. Riaz Uddin Khan

Death Reference No. 171 of 2017

The State

-Vs-

Md. Majedur Rahman @ Sagar and others

...Condemned-Prisoners

With

Criminal Appeal No. 140 of 2018

Md. Nazmul Hoque and another

...Condemned-Appellants

-Vs-

The State

...Respondent

With

Criminal Appeal No. 305 of 2018

Md. Majedur Rahman @ Sagar

...Condemned-Appellant

-Vs-

The State

...Respondent

With

Criminal Miscellaneous Case No. 32619 of 2018

Mst. Achinur Begum

...Convict-Petitioner

-Vs-

The State

...Opposite Party

With

Jail Appeal No. 08 of 2018

Md. Nazmul Hoque

...Condemned-Appellant

-Vs-

The State

...Respondent

With

Jail Appeal No. 09 of 2018

Md. Majedur Rahman @ Sagar

...Condemned-Appellant

-Vs-

The State

...Respondent

With

Jail Appeal No. 10 of 2018

Md. Ripon Sarkar @ Liton

...Condemned-Appellant

-Vs-

The State

...Respondent

Mr. S.M. Asraful Hoque, D.A.G with

Ms. Fatema Rashid, A.A.G

Mr. Md. Shafiquzzaman, A.A.G. and

Mr. Md. Akber Hossain, A.A.G

-----For the State

Mr. Md. Israfil Hossain, with

Mr. A.K.M. Rezaul Karim Khandker and

Mr. Md. Hammad Emdad Hossain, Advocates

(in Criminal Appeal No.140 of 2018)

Mr. Monzoor-Ul-Karim Kazal, with

Mr. Md. Habib Rabbani and

Mr. Md. Mayen Uddin Haque, Advocates

(in Criminal Appeal No. 305 of 2018

and Jail Appeal No. 09 of 2018)

...For the Condemned-Appellant

Mr. Md. Khurshid Alam, with

Mr. Sohel Rana and

Md. Mehebab Hossain, Advocates

(in Criminal Miscellaneous Case No. 32619 of 2018)

...For the Convict-Petitioner

Ms. Selina Easmin, Advocate

(in Jail Appeal No. 10 of 2018)

...For the State defence

Judgment on: 24.04.2024

Md. Riaz Uddin Khan, J:

This Death Reference No. 171 of 2017 has been referred by the Judge, Druto Bichar Tribunal, Rajshahi to the High Court Division of the Supreme Court under section 374 of the Code of Criminal Procedure for confirmation of the sentence of death of 3 persons namely Md. Majedur Rahman @ Sagar, Md. Nazmul Hoque and

Md. Ripon Sarkar @ Liton who have been convicted under sections 302/201/34 of the Penal Code and sentenced to death. On the other hand Criminal Appeal No. 140 of 2018 has been filed by condemned prisoner Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton. Criminal Appeal No. 305 of 2018 along with Jail Appeal No. 09 of 2018 preferred by condemned prisoner Md. Majedur Rahman @ Sagar and Criminal Miscellaneous Case No. 32619 of 2018 has been preferred by convict petitioner Mst. Achinur Begum and Jail Appeal No. 10 of 2018 have been preferred by condemned prisoner Md. Ripon Sarkar @ Liton.

The condemned-prisoners and the convict-petitioner along with 3(three) others stood trial on the charge under section 7 and 8 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 read with sections 302/201/34 of the Penal Code.

To prove the charge prosecution examined as many as 18 witnesses and the defence examined 02 witnesses.

As the prosecution gradually developed in course of the investigation it will be convenient to set out the facts leading to the prosecution of the condemned prisoners and others in chronological order.

Succinct facts for disposal of the Death Reference along with appeals and criminal miscellaneous case and jail appeals are that one Md. Ali Hossain on 20.12.2014 lodged the First Information Report (FIR) with the Mohanpur Police Station, Rajshahi alleging inter alia that his son Md. Fazle Hossain Rabbi (10), a student of Class III who on 20.12.2014 at about 06.30 pm went to a Tea Stall of Jahangir where the informant was sitting and the informant asked him to go home. Later the informant went his home and informed by his wife that

Rabbi did not come back home. Hearing that news they looked for his child and at one stage they announced the missing news from Mosque and on 21.12.2014 lodged a General Diary being No. 805. On 22.12.2014 at about 06.00 pm one Md. Shahabuddin came to his house with a mobile phone and informed that someone wants to talk with him regarding his missing son. He talked to that person who said through Mobile Phone that they have abducted his son and to get back his son he has to pay taka 10,00,000/- (ten lac) as ransom and on the next day that is on 23.12.2014 at about 18.12 hours again Shahabuddin came for the same phone call and the informant has also talked with those persons over telephone and they have claimed the same amount and at one stage threatened him that if he fails to pay the ransom they would do harm to his son. During this conversation witness Md. Abul kalam Mridha, Md. Abul Kalam Azad and Md. Shariful Islam Khan was present and the informant suspected that Md. Alauddin and Md. Aminul Islam of their village may have connection with the abduction of his son. With this allegation the FIR was lodged.

The police took up the matter for investigation and after investigation police submitted charge sheet against 5 persons namely condemned prisoners Md. Majedur Rahman @ Sagar, Md. Nazmul Hoque, Md. Ripon Sarkar @ Liton along with convict petitioner Mst. Achinur Begum and one Md. Abul Kashem. The informant filed naraji application and upon consideration, the matter was sent for further investigation by the CID and after further investigation supplementary charge sheet was submitted against the above 5 (five) persons along with Md. Aminul Islam and Md. Sahabuddin.

Condemned prisoner Md. Majedur Rahman @ Sagar made a confession on 27.12.2014. The convict prisoner Achinur Begum also made a confessional statement on 03.02.2015.

PW-1 Md. Ali Hossain is the informant who deposed in court narrating the FIR story but stated that it was not him but Shariful Islam Khan who talked to the persons over Shahabuddin's phone who demanded ransom. He further deposed that after his lodgment of ejahar police arrested accused Shahabuddin and Aminul and then Alauddin on 24.12.14. On 25.12.14 at night police arrested Kashem, his wife Achinur and his son Sagar and then Liton and Nazmul. On 26.12.14 in the morning police recovered the dead body of Rabbi on the pointing of the accused persons 500 yards away of Kashem's house and prepared inquest report. In cross examination he deposed that after lodging the FIR, he heard all the subsequent events from the police. He denied the suggestion that police did not arrest Nazmul and Ripon on 26.12.14 at 3.00 am or the dead body was not recovered on the pointing of the accused or on 20.12.14 Rabbi did not go to call him at 6.30 pm or abducted between 6.30 - 7.00 pm or accused Nazmul and Ripon are not involved with the occurrence.

PW-2 Md. Shariful Islam deposed that on 20.12.14 at about 8 pm he heard through miking that Ali Hossain's son Rabbi was missing and he phoned Ali Hossain for information. On 22.12.14 at about 6 pm he went to the house of Ali Hossain where many people were present including Chairman Abul Hossain and at about 6:30 pm one Shahabuddin came with a mobile phone and informed that someone was in the otherside who wanted to talk with Ali Hossain regarding his missing son. Ali

hossain receiving the call handed over it to him and he received the call as if he was Ali Hossain and the person on the otherside claimed that Rabbi was with them as they abducted the boy and demanded Tk-10 lac if they want to get back the boy. In reply he wanted to talk to Rabbi which was denied; then he asked them not to do any harm to Rabbi and where to go with money and in reply the abductor said that they will phone-call next day at the same time and cut off the call. Thereafter he along with Majedur and Shahinur went to the Mohanpur police station and talked to the officer-in-charge. On 23.12.14 at 6:30 this witness went to the house of Ali Hossain and at that time in the same way a phone call came in the Shahabuddin's set which was received by him and heard the voice in loud speaker so that everyone present there can hear the conversations. The caller wanted to know whether demanded money was ready or not and he replied that there was shortage of taka $2\frac{1}{2}$ lac. At one stage they rang back from Ali Hossain's set and the conversation was recorded and everyone assumed that caller was Alamin. Then they went to mohanpur thana and talked to SI Abdul Karim who kept both the mobile sets of Ali Hossain and Shahabuddin. On 26.12.14 at about 4 am this witness received a call from SI Abdul Karim who informed that dead body of Rabbi was found and he went to the place wherefrom the dead body was recovered and saw the dead body. Police prepared inquest report and he signed on it. The dead body was sent to hospital for postmortem and this witness went to hospital also and brought the dead body to Ali Hossain's house. He is a seizure list witness.

In cross this witness deposed that he told the police that he heard the news of missing of Rabbi from

miking on 20.12.14 at about 8 pm. That night he spoke to Ali Hossain on the phone. The next day at 9.00 am Ali Hossain came in front of his shop on a motorcycle. On 22/12/14 around 5.00 pm he called Ali Hossain and inquired about his missing son. He went to Ali Hossain's house around 6.00 pm and saw 150/200 people there including Chairman Abul Hossain and around 6.30 in the evening, a man named Shahabuddin brought a phone and gave it to Ali Hossain who received the phone and handed it to this witness saying hello and on the other hand said "are you Ali Hossain, Rabbi's father? Rabbi is with us". Then the caller described the appearance of Rabbi and demanded taka 10 lac and in reply this witness said that he work as a mason, it will not be possible to pay so much money. On the threat he said that he will collect money even if his house is to be sold and requested not to harm the son and then the phone line went cut off. People next to this witness heard the conversations. The conversation was recorded. Then he, Ali Hossain, his brother Mokhlesh, Majedur and Shahinur entered in a close door room and listened repeatedly the recording and everyone agreed that it was the voice of Aminul. Then they went to the thana and met SI Karim who after hearing everything kept both the phone sets. They went to the police station around 8.30 pm. No signature of him or anyone else was taken by police while keeping the 2 phones in the police station. He doesn't know who the police arrested after that night. He denied the suggestion that it is not true that a symphony mobile was not seized from the house of the accused in his presence and there was no signature on the seizure list or he did not sign on seizure list. He identified the seized phone set in

court. He denied further suggestion that it is not true that Achinur was not involved in the murder of Rabbi or that he mentioned Achinur's name based on the false statement.

PW-3 Md. Ataur Rahman who is the brother of the informant deposed that on 20/12/14 he was at his house at around 6.00/6.30 in the evening. At that time his brother Ali Hossain came home and informed that his son Rabbi didn't come home for which they searched for him and made an announcement through the mic at the local mosque. The next day on 22.12.14 accused Alauddin said it is possible to get Rabbi back if they can give taka 3/4 lac on which his brother agreed and Alauddin left. At around 6.45/7.00 pm accused Shahabuddin came with a mobile phone and told that someone wants to talk about missing Rabbi to Ali Hossain who gave the mobile phone to Shariful to talk. Shariful spoke and informed that the caller wants a ransom of taka 10 lac who abducted Rabbi and the caller cut off the call saying that he will talk again next day at the same time. The next day Shariful came and there was a call on Shahabuddin's phone again. Shariful picked up the phone call. The caller says on the phone that Ali Hossain has to pay the ransom and if they tell the RAB or the police, they will not get back the child. The conversation was recorded and after listening they were pretty sure that the voice was of Aminul. They went to Mohanpur thana and handed over the mobile sets. The police arrested the accused Shahabuddin, Aminul, Aminul's father and later Sagar, Liton, Nazmul, Kasem and Achinur. Accused Achinur got the mobile set with which the ransom was demanded. On the morning of 26/12/14 around 8/9 o'clock this witness saw a lot of police 4/5 hundred yards to

the east of Kasem's house and went there along with others from where dead body of Rabbi was recovered. He and everyone present there saw it. The child's head was separated from the body and the right arm was not attached to the body. The head was found on the side of the body but the hand was not. The police saw the body and then left with the body. On that day, around 4/5 o'clock in the afternoon, the body was brought back to the house. This witness identified accused Aminul, Liton, Sagar, Nazmul, Shahabuddin, Kasem, Achinur at the dock. In his cross examination he denied the suggestion that it is not true that nothing happened as stated by him or he did not hear anything from the mobile phone. Nazmul's father's name is Hazrat Ali and brother's name is Muntaz Ali. Muntaz Ali seems to have a daughter. Haven't heard if Muntaz's daughter was kidnapped a few days before Rabbi was kidnapped and didn't know if there was a case. It is not true that the abduction of Rabbi did not take place on 20/12/14 around 6.00/6.30 in the evening. It is not true that the mobile voice of the unknown person is not recorded. It is not true that he gave false deposition. It is not true that no mobile was recovered from Achinur. The mobile was recovered in front of him. The police took his signature on a paper. He saw Kasem, Achinur and Sagar were arrested at around 9:00 PM, the 3 were arrested in his presence. It is not true that nothing happened as per his claim or that he gave false deposition as taught by his brother.

PW-4 Md. Mokhlesur Rahman is the brother of the informant deposed that on the evening of 20/12/14 around 6:30/7 he was at Bakkar's tea shop and came to know that Rabbi was missing. The next day, everyone at

home was crying and around 6:30 pm Shahabuddin came to their house with a mobile phone and said that someone wanted to talk to Ali Bhai regarding missing of Rabbi. Shariful talked with the caller for 1/2 minutes and told them that the caller wanted a ransom of taka 10 lac and will call again next day at the same time. The next day Shahabuddin came and at 6:30 pm the call came again. This witness was present on both days of conversation and heard it through loud speaker and it was recorded on the mobile. Then Ali Hossain and others went to Mohanpur police station. The police came and arrested Aminul, Shahabuddin and Alauddin. The police asked him about Achinur. After entering the neighborhood with police he found out that Achinur is Kasem's wife. He told the police and went to Kasem's house with the police. The police entered and went inside the house and recovered a mobile phone from Achinur. On query by police Achinur said that Nazmul, Liton Sarkar, Aminul, Sagar, Shahabuddin have spoken through her mobile. Then the police seized the mobile phone and took his signature on a paper. The police arrested Kasem, Achinur and Sagar from that house. Next day dead body of Rabbi was recovered in his presence. There were many people including chairman Abul Khan, member Shukur. They saw that the head was separated from the body. The hands of the dead body were cut off. He could recognize Rabbi's dead body. Arrested Kasem, Achinur and Sagar are members of same family. Police recovered 2 hasua, and a knife from beneath the bed of accused Sagar, blood stained soil, blood stained broken clay pot, leaves and sandals from there. Seizure list was prepared and he signed on it. This witness identified accused Majedur Rahman @ Sagar, Shahabuddin,

Nazmul, Liton @ Ripon, Aminul, Kasem and Achinur at the dock. In his cross examination he deposed that he knew all the accused as local people. He denied all the suggestion regarding hearing the telephonic conversation between Shariful and the ransom seeker or recovery of hasua and blood stained soil, leaves, bulb and others or gave false deposition out of enmity.

PW-5 Md. Piar Ali deposed that on 20/12/14 around 7.00 in the evening he was going to his house from Jahangir's shop and heard on the miking that Rabbi was missing. He then searched for Rabbi with the people of the village but could not find him. A few days later he heard that the police have arrested 8 accused namely Aminul, Alauddin, Kasem, Sagar, Achinur, Shahabuddin, Nazmul and Liton. 6 days after Rabbi's missing, the police recovered his body from Purkanda Bill. He was present when the dead body was recovered. Rabbi's attire consisted of a pair of jeans, a gray sweater, and a rustic check half-sleeve shirt. Rabbi's right hand was missing and the head was separated from the body. He brought the dead body to Rajshahi Medical College Hospital for autopsy and after Post mortem took the body to the village. Police seized Rabbi's attire in his presence and prepared a list and he signed on it. Police seized 1 Symphony mobile set (with SIM) in his presence and prepared a seizure list and took his signature. He identified accused Aminul, Kasem, Sagar, Shahabuddin, Liton, Nazmul, Achinur and Alauddin. In his cross examination he denied all the suggestions put forward by the accused regarding his above mentioned statements.

PW-6 Md. Shahinur Rahman deposed that on 20/12/14, he heard that Ali Hossain's son had gone missing. His

name was Rabbi. That night he went to Ali Hossain's house and also searched for Rabbi with everyone. Two days later, he went to Bakkar's tea shop at around 8:00 am there accused Alauddin said that the boy can be found if taka 2/3 lakh is spent. He went at Ali Hossain's house around 6/7 pm after Maghrib prayer. There Shahabuddin's mobile received a call asking for ransom. Shariful recorded those conversations. The voice was identified as that of Aminul. Ali Hossain's brothers then took the phone and went to the police station. Police arrested Shahabuddin and Aminul. Later Alauddin was arrested. Then Kasem, his wife Achinur and son Sagar were arrested. He can't remember the date. After a few days in the morning he saw the police who took him to a place with mats, polythene and spade; he and a Dom pulled the dead body out of the drain from a dried lake. The head of the corpse was separated from the body, right hand missing. Later the day after the body was buried, around noon, 2 Hasua, 1 blood-stained light holder, blood-stained banana leaves and other tree leaves were seized by the police. He identified accused Sagar, Aminul, Ripon, Nazmul, Shahabuddin, Kasem and Achinur at the dock. In his cross examination he deposed that accused Majedur Rahman Sagar is his sister's son. Accused Kasem is father of Sagar and he has no enmity with Kasem. This witness denied all the suggestions put forwarded by the accused.

PW-7 Md. Shukur Ali deposed that on the night of 20/12/2014, Ali's son was missing. The next morning around 8/9 am he heard it. On the 6th day after the missing of the boy the dead body was found. The OC said that the dead body was buried on the south side of the drain of the lake. The head was separated from the body

and was kept at the side of the body. The police took the body to Mohanpur police station. The accused declined to cross examine him.

PW-8 Md. Abul Kalam Azad Mridha who is the previous husband of wife of accused Abul Kasem deposed that on 20/12/14 in the evening he heard that Ali's son Rabbi was missing and they searched for Rabbi but couldn't find. 22/12/2014 he went to Ali Hossain's house around six in the afternoon to see if there was any trace of his son. Shahabuddin came with a phone telling that someone wants to talk about Rabbi. Ali Hossain was not able to speak properly so he asked Shariful Islam to speak on that mobile phone. Shariful spoke through the loudspeaker on the mobile phone. The caller claimed that they have abducted Rabbi and demanded taka 10 lac for return of Rabbi and cut off the phone telling that he would call next day at the same time. On 23/12/2014 at 6.00 pm this witness went to Ali Hossain's house again. At that time the call came again on that mobile phone. Shariful spoke that day too through loud speaker and recorded the conversation. Everyone present, including him, heard the conversation on the mobile phone. Later that evening, Ali Hossain went to Mohanpur police station and reported the incident. That night the police came and arrested Aminul and Shahabuddin and took away Shahabuddin's mobile set. On 24/12/14 Ali Hossain went to police station at about 10/10.30 am and made a statement. On 26/12/14 around 9:00 am he got to know that Rabbi's dead body was found. Hearing that, he went to the field in the south-east corner of his house and saw dead body buried in the dry drain for watering potato fields. The body was placed on the ground, the

head was separated from the body and the right hand was missing. The body was identified by seeing the clothes and head. The police took the dead body to the police station. He returned home after some time. On 26/12/14 afternoon around 2/2.15 Sagar, Kasem and his wife were arrested by the police. The police searched Majedul Islam Sagar's room and found two (2) Hasua under the bed. One holder of bulb was seized with blood smeared fingerprints on the white plastic holder mounted on the concrete wall. Kasem has a tube-well inside his house and its water-drain goes outside the wall. Leather sandals used by the deceased were found beside the drain. Outside the wall, dried mango leaves and banana leaves were found smeared with blood. Blood was found on the edge of a broken clay pot. The police seized those and prepared a seizure list and he signed on it. He identified those material exhibits. He also identified accused Kasem, Kasem's wife, Sagar, Aminul, Shahabuddin, Nazmul and Liton at the dock. In his cross examination he deposed that all the accused in the dock are known to him as neighbors. This witness denied all the suggestions of the accused.

PW-9 Md. Sajedul Islam deposed that on 20/12/14 at about 8.00/8.30 he heard from miking that Rabbi (10) son of Ali Hossain has gone missing. Next day he went to Ali Hossain's house where he found many people including Shariful Islam Khan, Ataur, Ali Hossain and his wife. On 21/12/14 around 6.00 pm, Shahabuddin entered the house with a mobile phone and informed that someone on the otherside wants to talk about Rabbi. As Ali Hossain's condition was bad, Shariful Islam talked on the phone and the dialed person demanded a ransom of Tk 10 lakh to get back Rabbi giving accurate

description of Rabbi. The kidnapper said he would call again the next day at the same time. On 23/12/14 at 6.00 pm the kidnaper again rang and demanded the amount. All present there heard the conversations as the loud speaker was on which was also recorded and thought the voice was of accused Aminul. He and other went to the police station and informed the police who arrested accused Shahabuddin and Aminul on 23.11.14 at night. Ali Hossain lodged FIR on 24.12.14. Accused Sagar, Kasem and Achinur were arrested on 25.12.14. He could know from Shariful that police arrested accused Nazmul and Litton on 25.12.14 at late night and the dead body of Rabbi was found on pointing of accused Sagar. The head was severed and right hand was missing. The deadbody was taken to the Rajshahi Medical College Hospital and after autopsy was taken to Ali Hossain's house. A seizure list of apparels was prepared and he signed on it. In his cross examination he admitted that accused Kasem was his brother-in-law and denied that he had illicit relation with Kasem's sister-in-law for which his 1st wife divorced him. He admitted that there is land dispute between Kasem and his in laws. He further said that he did not see wherefrom Rabbi was missing. He denied all the suggestions put forwarded by the accused.

PW-10 Md. Abul Hossain Khan who is the Chairman of the Mougachi Union Parishad deposed that on 21.12.14 he could know from miking that on 20.12.14 at evening Ali hossain's son Rabbi was missing and Ali Hossain also told it to him and asked for advice and he advised him to lodge GD Entry. On 22.12.14 his son-in-law Shariful went to Ali Hossain's house and later informed him that unknown person demanded ransom of taka 10 lac to return

back Rabbi. On 26.12.14 he received a phone call from the OC and went to Sadhurpara lake when the circle ASP and the OC told him that 7 accused including Sagar, Kasem, Achinur, Liton and Aminul identified the place where the dead body of Rabbi was dumped and then in presence of many people the dead body was recovered beneath the mud. The head was separated from body and right hand was missing. An inquest report was prepared and he signed on it. He identified all the accused on the dock whose names he heard from the circle ASP. In his cross examination he deposed that the circle ASP and OC did not tell the name of Aminul as identifier of the place of recovery of the dead body. He denied the suggestion that he was not called by the OC or the dead body was not recovered from the place as shown by 7 accused or he was not present at the time of recovery of dead body or he deposed falsely.

PW-11 Arjia Begum, mother of the deceased deposed that about 3 years back on 20, Saturday her son Rabbi went to the tea stall of Jahangir but did not come back. Rabbi was missing for which they looked for him and made announcement through miking. After 7 days the dead body of her son was recovered. The accused declined to cross examine her.

PW-12 Md. Ashraful Islam declared hostile by the prosecution who deposed that on 20.12.14 he could know about the missing of Rabbi and on 22.12.14 he went to Ali Hossain's house where accused Shahabuddin came with mobile phone and informed that someone wants to talk about Rabbi and then Shariful posing himself as Ali Hossain talked with the caller who demanded taka 10 lac as ransom and wanted to call on the next day but he did not go there on the next day. At this stage this

witness was declared hostile by the prosecution. In his cross examination he deposed that he signed on the seizure list of recovery of a symphony mobile set from Shahabuddin. He denied the suggestion regarding his hearing of conversation between Shariful and the ransom seeker.

PW-13 Md. Habibur Rahman deposed regarding his hearing of missing news of Rabbi and subsequent demand of ransom of taka 10 lac by unknown person. On 26.12.14 he heard that Rabbi's dead body was recovered from near a dry drain of the land owned by his wife situated at east side of Kasem's house and then he saw the dead body. In his cross examination he denied the suggestions put forwarded by the accused.

PW-14 Md. Saiful Islam Sarker is one of the Investigating Officers who deposed that he visited 3 places of occurrence and found the sketch maps prepared by previous IO correct and witnesses statements recorded by the previous IO was similar for which he did not wrote the same but found some discrepancies of statements of some witnesses and recorded their statements again. After further investigation he found prima facie case against accused Sagar, Kasem, Achinur, Nazmul, Ripon, Aminul and Shahabuddin under section 7 and 8 of the Nari-O-Shishu Nirjatan Daman Ain read with sections 302/201/34 of the Penal Code and submitted supplementary charge sheet accordingly. In his cross examination he deposed that none was named in the FIR and in the 1st CS names of accused Shahabuddin and Aminul were dropped and on naraji petition on the order of the court he investigated the case further. He admitted that he did not seize any CD of voice record and did not record the voice of accused and he has no

expertise on voice record. He denied the suggestion that being biased by the informant he submitted CS against accused Shahabuddin and Aminul. In the Sketch map marked as A is the place where from deceased was abducted. There are some houses near the road of place of occurrence but he does not know who own those. He denied the suggestion that he did not visit the place of occurrence or submitted CS according to his whims. In the 1st and 2nd sketch maps the house of the informant was not shown. He denied suggestion that 1st and 2nd sketch maps were not actual places of occurrence. He did not send the blood for chemical examination to ascertain whether it was of human or not. He recorded the witness statements 1 year after the occurrence. He denied the suggestion that there is no evidence that accused Nazmul and Ripon used the mobile phone of accused Achinur or he deposed false statements.

PW-15 Dr. Md. Jobaidur Rahman is the doctor who conducted autopsy on the body of the deceased, deposed that he found the following injuries- “(1) One cut throat wound circular, transverse found on the neck which was separated the head & neck from the body at the level of 6th cervical vertebra. Margin is sharp & clean cut. Liquid & clotted blood found.

(2) Multiple post mortem injury found on the body which was due to animal bite.

(3) Defence wound found on the palm & fingers of hand.

Dissection: On detailed dissection ante mortem congestion found in the mentioned wound. Injury No. 1) Cuts the skin, muscles, oesophagus, respiratory passages, cervical, 6th vertebra, neck vessels, spinal cord & separated head & neck from the body. Liquid &

clotted ante mortem blood found. Mentioned injuries are done by sharp cutting weapon. Injury was transverse & no hesitation cut found.

Death in my opinion was due to haemorrhage & shock as a result of above mentioned cut throat wound by sharp cutting weapon which was ante mortem & homicidal in nature.” This witness identified the PM Report and his signature and signature of Dr. Md. Mahfuzul Sarker on it which were marked as Exhibit 14, 14/1 and 14/2 respectively. In his cross examination he denied the suggestion that without proper examination, the PM report was prepared.

PW-16 Md. Mahmudul Hassan is the Senior Judicial Magistrate who recorded the statement of Mst. Achinur Begum deposed that on 3.2.15 accused Achinur Begum was produced before him for recording confessional statement and following procedure giving 3 hours time for reflection he recorded the statement and read over to her who admitting the same put 5 signatures on it while he put 7 signatures on it. He certified that the statement made by the accused was voluntary and true. In his cross examination he deposed that he did not know whether the accused was earlier placed on remand or not. The accused was arrested on 26.12.14 and produced before him on 3.2.15. The accused was then at his chamber solely for about 3 hours under the guard of his peon Mostafiz and police was not present there. No one entered at his chamber during the recording of the statement. He asked the accused whether she was tortured but did not examine her body by any female person. He certified that he did not find any mark of injury on the body of the accused. He denied the suggestion that police was present during recording or

the accused did not voluntarily make the confession or he did not follow the procedure of section 364 of the Cr.PC.

PW-17 Md. Abdul Karim is the 1st Investigating Officer who deposed that he visited the place of occurrence and prepared the sketch map. He interrogated the witnesses and recorder their statemts under section 161 of the Cr.PC. He collected the call list of cell no.01987239668 in relation to abduction of deceased Rabbi. He arrested Shahabuddin, Aminul and Jahangir and seized mobile set of Shahabuddin bearing no.01752169482. On tracking cell no.01773385016 was found in the name of Achinur from whose mobile set ransom was demanded using cell no.01987239668. Then on 26.12.14 he arrested Achinur, Kasem and Sagar and seized mobile set of Achinur being model no.B41. Then he arrested accused Nazmul and Ripon sarker on 26.12.14 at about 5:40 am. On interrogation accused Sagar, Nazmul and Ripon admitted the abduction and killing of deceased Rabbi and told about the place of burial of the dead body. On pointing of accused Sagar on 16.12.14 at 9.00 am the dead body was recovered. He prepared the inquest report. The head was severed, right hand was not found and there was no flesh on fingers of left hand upto rist. The dead body was sent for autopsy to Rajshahi Medical. Place of recovery of dead body was shown as 3rd place of occurrence and where Rabbi was killed is the 2nd place of occurrence. On 26.12.14 the materials used for murder were recovered on the pointing of accused Sagar, Nazmul and Ripon. 2 sharp Hashua, one pair of sandal, one blood stained holder, blood stained 3 leaves and banana leaves and a broken clay pot were recovered. On 27.12.14 accused Sagar made

confession while Achinur made confession on 3.2.15 before the Magistrate. The apparels of deceased were seized. Registration paper of SIM no.01987239668 was seized. After thorough investigation finding prima facie case he submitted CS against accused Sagar, kasem, Achinur, Nazmul and Ripon under section 7/8 of the Nari-O-Shishu Nirjatan Daman Ain read with sections 302/201/34 of the Penal Code on 24.04.15. In his cross examination he deposed that ransom was demanded from cell no.01987239668 to 01752169482. He collected the CDR of cell no. 01987239668 and on analysis found it was used in set bearing IMEI no.343003054062260 of accused Achinur. He denied the suggestion that no mobile set was recovered from Achinur. He also denied all the suggestions in relation to CDR and call history of relevant mobile numbers. 1st place of occurrence is shown as per identification of the informant while 2nd one is marked as pointing by accused Sagar. He denied the suggestion that accused Sagar and Achinur were brutally tortured for extracting confession. Accused Nazmul and Ripon were arrested on 26.12.14 and taken for remand for 4 days and then on 2 days but did not make any confession. He denied the suggestion that during investigation he could know that there was a Nari-O-Shishu case and land dispute between accused Sagar-Kasem-Achinur and Nazmul and Ripon. He denied further suggestion that if he investigated the case properly the names of Nazmul and Ripon would ended in final report. On Re-call he submitted the CDR and on cross denied all the suggestions put forwarded by the accused in relation to CDR and other calls of Mobile phones. On query accused Sagar told he is 19 years old but did not ask for any paper or medical test to

ascertain his age. He denied the suggestion that as per SSC certificate Sagar's date of birth was 19.03.1998.

PW-18 Md. Mokdagir Alam is the Magistrate who recorded the confessional statement of accused Sagar, deposed that on 27.12.14 accused Majedur Rahman @ Sagor was produced before him for recording confession. He kept Sagar in his chamber under the supervision of peon Munir where no police was present. Sagar was allowed 3 hours for reflection and he told Sagar that he was not bound to make confession. This witness recorded the confessional statement following the procedure and after completion of recording read over it to Sagar who knowing it correct put his 2 signatures and this witness put 4 signatures on it. He certified that Sagar made the confession at his free will which appeared to be true. In cross examination he deposed that he did not find any injury on the body of accused Sagar and he asked Sagar about any torture upon him. He denied the suggestion that though he found marks of injury on Sagar but did not mention it in the form of the confessional statement. He filled up all the column of the form as answered by the accused and it is the true version of the statement of the accused. He denied the suggestion that the confession was extracted out of torture.

Besides being these statements of the prosecution witnesses condemned prisoner Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton produced 2 defence witnesses.

DW-1 Md. Montaz Ali who deposed that they are 3 brothers namely Jasim Uddin, Hazrat Ali and Montaz Ali. Accused Nazmul is the son of Hazrat Ali. This witness filed a criminal case of abduction of his daughter Rowsan in which case Monirul, nephew of accused Kasem

was an accused for which he has bitter relations with Kasem and Monirul. Accused Ripon is his cousin. Both Kasem and Ripon have bettle garden side by side and have dispute. In cross examination he deposed that he is uncle of accused Nazmul. Accused Kasem, Alauddin, Nur Islam, Hakim, Lokman and Ukil are 6 brothers. Munirul, accused of the case filed by him is the son of Hakim. He denied the suggestion that Kasem has no brother named Hakim but admitted that Kasem may have 3 brothers namely Kasem, Nur Islam and Alauddin. He does not know whether accused Nazmul and Ripon are accused of the case of Dhaka Metro case no.58 dated 25.09.10 under section 302/201/34 of the Penal Code. He has no paper to show that Kasem and Ripon has bettle garden side by side. He does not know the father's name of Hakim. He denied the suggestion that he deposed falsely.

DW-2 Md. Jahangir Alam who deposed that he has a tea stall and on 20.12.14 he opened the same at 3 pm and on that date accused Nazmul and Ripon along with others were present from magrib prayer till 10 pm. In cross examination he deposed that accused Ripon is his cousin. Accused Nazmul and Ripon along with others were playing carom and at about 10 pm everyone was talking about the news of missing of Ali Hossain's son Rabbi. There was announcement from the mike of the mosque which is 100 hands away from his shop. Then this witness said that miking was made after the esha prayer. There is TV at his shop. 70/80 persons watch TV while 40/50 persons play carom and it is not possible for him to observe that when and who come and go at his shop. He denied the suggestion that he helped the accused Nazmul and Ripon to abduct Rabbi. He admitted

that Rabbi went to his shop at around magrib prayer and his father Ali Hossain bought something for him and then Rabbi went from there.

Trial Court after taking the depositions of the witnesses examined the accused persons under section 342 of the Code of Criminal Procedure wherein condemned prisoner Md. Majedur Rahman @ Sagar and convict petitioner Mst. Achinur Begum filed written submissions though did not adduce any witnesses on their behalf.

Condemned prisoner Md. Majedur Rahman @ Sagar made a confession under section 164 of the Code of Criminal Procedure wherein he stated that-

“ফজলে হোসেন রাব্বির সাথে আমি নিয়মিত কথা বলতাম। তাকে আমি ভাইয়ের মতো দেখতাম। মোঃ রিপন আলী সরকার ওরফে লিটন পিতা- আঃ রাজ্জাক, সাং বেড়াবাড়ী ডাইংপাড়া ও মোঃ নাজমুল হক, পিতা- হযরত আলী, সাং- বেড়াবাড়ী ডাইংপাড়া গত ১৯/১২/১৪ তারিখ শুক্রবার জুম্মার নামাজের পরে আমার সাথে পরিকল্পনা করে রাব্বিকে ফাঁকা জায়গায় নিয়ে যাবার জন্য। আমি না করলে আমাকে মেরে ফেলার হুমকি দেয়। পরে বলে কাজটি করে দিলে আমাকে তারা ৫০,০০০/- টাকা দেবে। পরের দিন অর্থাৎ ২০/১২/১৪ তারিখে সন্ধ্যার সময় রিপন ও নাজমুল আমার সাথে আমার বাড়ীর পার্শ্বে রাস্তায় দেখা করে বলে রাব্বির জাহাংগীরের মোড়ে আছে। আমাকে আমার বাড়ির পূর্ব পাশে ফাঁকা জায়গায় রাব্বিকে নিয়ে যেতে বলে আমি জাহাংগীরের মোড়ে যাই। রাব্বির সাথে কথা বলি। রাব্বি যখন বাড়ী যেতে চায় তখন রাব্বিকে বলি আমার একটা সমস্যা আছে। তুই আমার সাথে চল। তখন রাব্বি আমার সমস্যার কথা শুনে আমার সাথে আমার বাড়ীর পূর্ব পাশে ফাঁকা জায়গাতে যায়। ফাঁকা জায়গাতে যাওয়ার পরপরই রিপন আমাকে ধাক্কা মেরে ফেলে দেয় এবং তার হাতে থাকা হাসুয়া দিয়ে রাব্বির ঘাড়ে পিছনে কোপ মারে। রাব্বি পড়ে গেলে নাজমুল রাব্বির মুখ ও গলার টুটি চেপে ধরে। রাব্বিকে শ্বাসরোধ করে মেরে ফেলার পরে নাজমুল তার হাতে থাকা হাসুয়া দিয়ে রাব্বির মস্তক বিচ্ছিন্ন করে। অবস্থা দেখে আমার প্রসাব ও পায়খানা হয়ে যায় এবং আমার কাপড় নষ্ট হয়ে যায়। রিপন ও নাজমুল আমাকে বাড়ী যেয়ে কাপড় পরিবর্তন করে আসতে বলে। আমি বাড়ীতে গিয়ে কাপড় পরিবর্তন করে অবার আসি। ফিরে এসে দেখি নাজমুল ও রিপন রাব্বির লাশ একটি পাটের বস্তার মধ্যে ঢুকাচ্ছে। তাদের কাছে একটি কোদাল ছিল। মাটিতে যে রক্ত ছিল তা নাজমুল কুপিয়ে মেশানোর চেষ্টা করে। রিপন আমার কাছে একটি টর্চ লাইট ও কোদাল দেয়। তারপর তারা দুজনে লাশের বস্তা ধরে যেখানে রাব্বিকে মারে তার ৫০০ গজ মতো পূর্ব দিকে একটি নালার কাছে নিয়ে যায়। আমি তাদের পিছে পিছে যাই। আমি লাইট ধরেছিলাম। রিপন কোদাল নিয়ে নালার মাঝখানে কিছুটা খোঁড়ে। তারপরে নাজমুল বস্তার মধ্য হইতে লাশ বাহির করে গর্তের মধ্যে ফেলে দেয়। রিপন লাশ মাটি চাপা দেয়। নাজমুল বস্তাটি কেটে ৮/১০ টুকরা করে।

তারপরে হাসুয়া দুইটি যেখানে লাশ পুতে তার ১০০ গজ মতো দূরে নাজমুল পানের বরজে ফেলে দেয় এবং বস্তার টুকরা পার্শ্বে জঙ্গলে ফেলে দেয়। আমি তাদেরকে বলি রাক্ষিক লুকিয়ে রাখার কথা ছিলো কিন্তু তাকে মারলি কেন? উত্তরে নাজমুল রিপন জানায় লুকিয়ে রাখার জায়গা নাই তাই মেরে ফেললাম। আমি সবাইকে ঘটনা বলে দিতে চাইলে তারা সব ঘটনা আমার উপর চাপিয়ে দেবার ভয় দেখায়। তারপরে রাত ১০.০০ টার দিকে প্রত্যেকে প্রত্যেকের বাড়ীতে চলে যাই। পরের দিন সকালে অর্থাৎ ২১/১২/১৪ তারিখে সকালে রিপন ও নাজমুল আমাকে আমার মায়ের মোবাইল বিকালে নিয়ে যেতে বলে। বিকালে আমি আমার মায়ের মোবাইল নিয়ে মৌগাছী যাই। সেখানে যাওয়ার পরে রিপন আবার মোবাইল নেয়। নাজমুল বাংলা লিংকের একটা সিম বের করে যার নম্বর সম্ভবত: ০১৯৮৭২৩৯৬৬৮ দিয়ে আমাদের বাড়ীর পার্শ্বে বাড়ী আলী জান্নাত ওরফে মুক্তাকে ফোন করে রিপন। রিপন মুক্তাকে ব্যবহৃত মোবাইল নম্বরটি রাক্ষির বাবাকে দিতে বলে। কিন্তু মুক্তা নম্বরটি রাক্ষির বাবাকে দেয় নাই। আমি মোবাইল নিয়ে বাড়ী চলে আছি। রিপন ও নাজমুল চলে যায়। পরের দিন সোমবার সন্ধ্যার সময় নেংড়ার বিল নদীর পাশে দাড়িয়ে আমার মায়ের মোবাইল এবং নাজমুলের দেয়া ০১৯৮৭২৩৯৬৬৮ নম্বর সিম দিয়ে রিপন আমাদের বাড়ীর পার্শ্বে মোঃ শাহাবুদ্দীন সরকার ওরফে শাহানুর এর মোবাইলে কল দেয়। রিপন শাহাবুরকে ব্যবহৃত নম্বরটি রাক্ষির বাবাকে দিতে বলে। শাহানুর সাথে সাথে রাক্ষির বাবাকে মোবাইল ধরিয়ে দেয়। তখন রিপন রাক্ষির বাবাকে বলে “তোমার ছেলে আমাদের কাছে আছে। ফেরত চাইলে দশ লাখ টাকা দিতে হবে।” তখন রাক্ষির বাবা রাক্ষির সাথে কথা বলতে চায় রিপন বলে রাক্ষি ঘুমিয়ে আছে। তারপর রিপন ফোন কেটে দেয়। পরের দিন মঙ্গলবার সন্ধ্যার সময় একই জায়গা অর্থাৎ নেংড়ার বিল নদীর পাশে আমার মায়ের মোবাইল এবং পূর্বে ব্যবহৃত বাংলা লিংক সিম দিয়ে রিপন শাহাবুরের মোবাইলে ফোন দেয়। ফোন সাথে সাথে রাক্ষির বাবা ধরে। রিপন রাক্ষির বাবাকে জিজ্ঞাসা করে টাকা যোগাড় হয়েছে কিনা। রাক্ষির বাবা বলে কিছু টাকা যোগাড় হয়েছে তখন রিপন জানায় কিছু টাকা যোগাড় হলে হবে না। দশ লাখ টাকাই লাগবে। রাক্ষির বাবা বলে টাকা নিয়ে কোথায় আসবে। তখন রিপন বলে টাকা জোগাড় হলে সে (রিপন) ফোন দেবে। রিপন আরো বলে শাহাবুরের মোবাইল শাহাবুরকে দিয়ে দেবার জন্য এবং রাক্ষির বাবার মোবাইল থেকে রিপনের ব্যবহৃত ০১৯৮৭২৩৯৬৬৮ নম্বরে কল দেয়ার জন্য বলে। তখন রাক্ষির বাবা শাহাবুরের মোবাইল শাহাবুরকে দিয়ে দেয় এবং শাহাবুরের মোবাইল থেকে নম্বর নিয়ে রাক্ষির বাবা তার ব্যবহৃত নম্বর দিয়ে ০১৯৮৭২৩৯৬৬৮ নম্বরে কল করে। রাক্ষির বাবা রাক্ষির সাথে কথা বলতে চায়। রিপন বলে রাক্ষি ঘুমাচ্ছে। অন্য সময় কথা বলতে বলে। তারপরে রিপন ফোন কেটে দেয়। সিম বের করে নাজমুল নিয়ে নেয় এবং আমাকে আমার মোবাইল দিয়ে দেয়। তারপরে যে যার বাড়ীতে চলে যাই। রাক্ষির বাবার সাথে কথা বলার সময় রিপন তার পরিচয় দেয় নাই। রাক্ষিকে হত্যা করা হয় ২০/১২/১৪ তারিখ শনিবার সন্ধ্যা ০৬.৩০ ঘটিকা হইতে ০৭.০০ ঘটিকার মধ্যে।”

Convict petitioner Mst. Achinur Begum in her confessional statement under section 164 of the Code of Criminal Procedure stated that-

“ঐদিন ছিল ডিসেম্বর মাসের ২০ তারিখ, রোজ শনিবার। আনুমানিক সন্ধ্যা ০৭:৩০ টার দিকে আমি আমার ঘরের আচ্চালিতে (বারান্দায়) বসে কাঁথা সেলাই করছিলাম। আমার সতীনের ছেলে মাজেদুর হে সাগর, নাজমুল হে রিপন এবং লিটন আমার বাড়ীতে ঢুকে। লিটন ও নাজমুল একহাতে রাব্বিকে আর অন্য হাতে হাইস্যা ধরেছিল। ওরা আমাকে ঘরের ভিতরে ঢুকতে বলে। আমি জিজ্ঞেস করলে বলে যে, কাজ আছে। আমি ঘরে ঢুকি। ওরা ঘরের দরজা বাহিরে থেকে লাগিয়ে দেয়। আমি খুলতে বললে আমাকে চুপ থাকতে বলে। আমার স্বামী বাড়িতে ছিলনা। আমি ভয়ে চুপ থাকি। এক থেকে দেড় ঘন্টা পর ‘ইশ’ বলে একটা জোরে চিৎকার শুনি রাব্বির গলায়। আমার সতীনের মেয়ে কলি ও মিম অন্য ঘরে দরজা লাগিয়ে পড়ছিল। চিৎকার শুনে দরজা ধাক্কালে কে যে দরজাটা খুলে এটা আমার আর খেয়াল নাই। দরজায় দাড়িয়ে দেখি যে লিটন ও নাজমুল টিউবওয়ায়ে দুইটা হাইস্যা থেকে রক্ত ধুচ্ছে; আর সাগর পাশে দাড়িয়ে ছিল। আমাকে বলে, এই কথা কাউকে বললে আমাকে আর আমার স্বামীকে মার্ডার করবে। আমি রাব্বির কথা জিজ্ঞেস করলে ইশারায় নাজমুল আর লিটন গলা কাটার ভঙ্গি করে। আমি শুনেছিলাম যে, ওরা ঢাকাতেও মার্ডার করে এসেছে। আমি আর কিছু বলিনি। হাইস্যাগুলো সাগরের ঘরে রেখে আসে। নাজমুল চল্লিশ পাওয়ারের বাল্ব খুলে জিরো বাল্ব লাগায় আচ্চালিতে। জিরো বাল্বে রক্ত লেগেছিল। এরপর নাজমুল ও লিটন বাড়ী থেকে চলে যায়। সাগর গোসল করে লুঙ্গি, গেঞ্জি, সোয়েটার বালতিতে ভিজিয়ে রাখে। আমি গোসল কেন করছে জিজ্ঞেস করলে বলে যে পায়খানা করে লুঙ্গি নষ্ট করেছে। গোসল করে সাগর ওষুধ আর স্যালাইন কিনে এনে খেয়ে বাড়ী থেকে যায়। রাত্রে কখন সে ফেরত আসে আমি জানিনা। আমি তখন ঘুমিয়ে ছিলাম। আমার সৎ ব্যাটা সাগর আগে থেকেই আমার মোবাইলটা লিয়ে বেড়াতো। আমিও কিছু বলতাম না। ঐ ঘটনার পরে সাগরের কাছেই শুনেছি যে ঐ মোবাইলের সীম পাল্টিয়ে ওরা তিনজন সাহাবুলকে ফোন করে রাব্বির বাপকে চায়। তারপর রাব্বির বাপের সাথে সাগর, নাজমুল ও লিটন কথা বলে দশ লাখ টাকা চেয়েছে রাব্বির খোজ দিবে এই বলে। রাব্বির লাশ ওরা কি করেছিল আমি জানিনা। আমাকে আর আমার স্বামীকে মেরে ফেলবে এই ভয়ে আমি কাউকে কিছুই এতদিন বলিনি। এই আমার দোষ স্বীকারোক্তিমূলক জবানবন্দী। এই জবানবন্দী আমাকে পড়ে শোনানোর পরে সঠিকভাবে আমার কথামত লেখা হয়েছে জানিয়ে আমি প্রতি পৃষ্ঠায় নিজের নাম স্বাক্ষর করিলাম।”

These are the evidences before us and on these evidences the trial court, that is, the Druto Bichar Tribunal, Rajshahi considering all the evidences found that the prosecution have able to prove the case beyond all reasonable doubt and convicted Md. Majedur Rahan @ Sagar, Md. Nazmul Hoque, Md. Ripon Sarkar @ Liton under section 302/201/34 of the Penal Code and sentenced all of them under section 302 of the Penal Code to death along with a fine of Tk. 20,000/- each. The learned Judge convicted Mst. Achinur Begum under section

302/201/34 of the Penal Code and sentenced her to imprisonment for life (till death) under section 302 of the Penal Code along with a fine of Tk. 10,000/-. The learned Judge acquitted accused Md. Shahabuddin, Md. Aminul Islam and Md. Abul Kasem from the charge.

The learned Deputy Attorney General along with the Assistant Attorneys General appearing for the state in support of the death reference submits that condemned prisoner Md. Majedur Rahman @ Sagar made confession just after his arrest giving vivid description how deceased Md. Fazle Hossain Rabbi, a boy of only 10 years, was abducted and killed who further stated that he (Sagar) along with condemned prisoners Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton, after abduction and killing of the deceased boy, demanded ransom to the father of the deceased.

The learned Deputy Attorney General then submits that the dead body of the deceased was recovered based on the confession of accused Md. Majedur Rahman @ Sagar and condemned prisoners Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton and on their pointing the dead body was recovered. The DAG further submits that convict petitioner Mst. Achinur Begum by letting her Mobile Phone to his son Md. Majedur Rahman @ Sagar helped the abductors to demand the ransom to the father of the deceased. The Deputy Attorney General vehemently submits that since the dead body was recovered on the pointing of condemned prisoners Md. Majedur Rahman @ Sagar, Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton, it is proved beyond all reasonable doubt that the confession made by condemned prisoner Md. Majedur Rahman @ Sagar is true and voluntary. The incriminating materials that is দুইখানা ধারালো হাসুয়া, কাঠের বাটসহ, এক জোড়া চামড়ার সেভেল,

রক্তমাখা বৈদ্যুতিক বালের সাদা হোল্ডার, তিনটি গুলনা গাছের পতা, কলাগাছের গুলনা ছিড়া পতা এবং রক্ত মাখা একটি মাটির হাড়ির ভাংগা কানা were also recovered. He then submits that from the confession of convict petitioner Mst. Achinur Begum it is clear that she did not see the whole occurrence but a part of the occurrence and she described that part what she saw. The learned Deputy Attorney General further submits that though there is no eye witness of this gruesome murder of a 10 year boy but the 02 confessions along with the evidences of recovery of incriminating materials and the dead body of the deceased it is crystal clear that the condemned prisoners and the convict petitioner in a pre-plan manner abducted the deceased Md. Fazle Hossain Rabbi and then killed and demanded ransom which has been proved beyond reasonable doubt. The trial court also gave findings on it but mistakenly did not pass any sentence upon them under sections 7 and 8 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 and as Appellate Court this Court may consider that part also. In support of his contentions learned DAG cited the decisions of Shah Alam and others Vs. The State reported in 42 DLR (AD) 31 and Shukur Ali and others Vs. State reported in 74 DLR (AD) 11.

Per contra Mr. Md. Israfil Hossain along with Mr. AKM Rezaul Karim Kandakar appearing for condemned prisoners Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton submits that there is no eye witness in the present case and all are hearsay witnesses. The prosecution examined 18 witnesses, but failed to prove that who abducted the victim. Not a single witness has supported the prosecution case. Most of the witnesses supported each other that after missing the victim the accused Aminul has been demanded the ransom and as such, the

convict-appellant Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton has no involvement. The learned advocate then submits that if we look into the depositions of PWs-1, 3 and 6 then it would be clear that who demanded ransom from the father of the victim. PW-1, PW-3 and PW-6 told that the accused Alauddin said that if Tk. 3,00,000/- is given, he will be able to recover the victim. As per depositions of above collaborated witnesses the accused Alauddin is clearly involve with Kidnap and not appellants Md. Nazmul Hoque and Md. Ripon Sarker @ Liton. He next submits that if we see how and from where the dead body of the victim was recovered then we shall find no involvement of Nazmul and Ripon. Mr. Hossain further submits that not a single witness supported the confessional statements of co-accused Majedur Rahman @ Sagar and Achinur Begum. The learned advocate drawing our attention of both the confessional statements submits that those are contradictory to each other. Achinur Begum told in her confessional statement that “আমার সতীনের ছেলে মাজেদুর @ সাগর, নাজমুল @ রিপন এবং লিটন আমার বাড়ীতে ঢুকে। লিটন ও নাজমুল একহাতে রাব্বিকে আর অন্য হাতে হাইস্যা ধরেছিল। ওরা আমাকে ঘরের ভিতরে ঢুকতে বলে।” On the other hand Majedur Rahman @ Sagar told in his confessional statement that “রাব্বি যখন বাড়ী যেতে চায় তখন রাব্বিকে বলি আমার একটা সমস্যা আছে। তুই আমার সাথে চল। তখন রাব্বি আমার সমস্যার কথা শুনে আমার সাথে আমার বাড়ীর পূর্ব পার্শ্বের ফাঁকা জায়গাতে যায়।” Achinur Begum said in her confessional statement that “হাইস্যাগুলো সাগরের ঘরে রেখে আসে।” On the other hand Majedur Rahman @ Sagar told in his confessional statement that “তারপরে হাসুয়া দুইটি দেখানো লাশ পুতে তার ১০০ গজ মতো দূরে নাজমুল পানের বরজে ফেলে দেয় এবং বস্তার টুকরা পার্শ্ব জঙ্গলে ফেলে দেয়।” In such facts, according to the learned advocate, no reliance can be placed on the confessions of the convicts Sagar and Achinur.

The learned advocate further submits that 2 pieces of Hashua and white holder of a electric bulb were recovered, but those were not examined for finger print, so the prosecution miserably failed to prove that who killed the victim by the Hashua as well as who's blood was found on the electric holder. As per confessional statement of Majedur Rahman @ Sagar, one Spade and one Torch Light were used for digging the hole, but the prosecution failed to recover the said Spade and Torch Light. The prosecution failed to recover the SIM being No. 01987239668 from which number the alleged ransom was demanded. From the depositions of PWs-1,3,4,6,8,9 and 14 it is crystal clear that accused Aminul demanded the ransom from the father of the deceased but the voice of Aminul has not been examined. Convict-appellants Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton were arrested on 26.12.2014 at 5 am, they were taken for remand by the Investigating Officer on 27.12.2014 for a period of 4 days, on 31.12.2014 for a period of 2 days, on 22.01.2015 for a period of 3 days and on 25.02.2015 for a period of 1 day, but nothing came out from them which suggest that the convict-appellants Md. Nazmul Hoque and Md. Ripon Sarkar alias Liton were not at all involved with abduction and murder of the deceased Rabbi. The incriminating material were not recovered from Nazmul and Ripon as the IO clearly deposed that “উল্লেখিত আলামত গুলির মধ্যে ০১ নং আলামত আসামী মাজেদুর রহমান হু সাগর এর কক্ষ হতে বিছানা নিচে ২ নং আলামত টিউবওয়েলের পানির মাটির গর্ত ও গর্তের পাশে, ৩ নং আলামত আসামী আবুল কাশেমের ঘরের বারান্দার ইটের ওয়ালের সাথে ৪, ৫ ও ৬ নং আলামত আবুল কাশেমের বাড়ীর পূর্ব/দক্ষিণ কোন ইটের ওয়ালের নিকট হইতে জব্দ ও হেফাজতে গ্রহণ।” The mobile set and SIM are of accused Shahabuddin and not of these convicts as the IO said that “একটি Symphony মোবাইল সেট মডেলের নং- S-103, আই,এম,ই,আই

নং- 355455054769432 মোবাইল সিম নং- ০১৭৫২১৬৯৪৮২, আসামী আঃ শাহাবুদ্দীন পিতা- মোঃ আঃ হাকিম, সাং- বেড়াবাড়ী, ডাইংপাড়া, থানা- মোহনপুর, রাজশাহী এর নিকট হইতে একটি ব্যবহৃত Symphony মোবাইল সেট। মডেলের নং- B41, SIM 1 IMEI No. 353003045062267, SIM 2 IMEI No. 353003045062275, সিম নং- ০১৭৭৩৭৮৫০১৬ (চালু অবস্থায়) সচল অবস্থায় জন্ম। উক্ত মোবাইল সেটে বাংলালিংক সিম নং- ০১৯৮৭২৩৯৬৬৮ ইং ২১/১২/১৪ তাং ২৩/১২/২০১৪ তাং ব্যবহার হয়। বেড়াবাড়ী ডাইংপাড়া আসিনুর বেগম স্বামী আবুল কাশেম এর বসতি বাড়ী আসামী আসিনুর বেগম এর নিকট হতো।” বরন নংভধনশদনডু দরনতক্ষরুঁ ডুবষং চুবতচ চুবনক্ষন ত্তড enmity in between Accused Kasem with Nazmul and Ripon as DW 1 stated in his deposition that “আমার মেয়ে রওশন আরাকে অপহরণ সংক্রান্ত মামলা করেছিলাম। আসামী কাশেমের ভতিজা মনিরুল আসামী ঐ মামলার। মামলা নং ১০২/২০০৯ নারী ও শিশু নির্যাতন দমন মামলা। আসামী নাজমুলের বড় ভাই শওকত আমার নারী শিশু মামলায় সাক্ষী আছে। সে কারণে এই মামলার আসামী কাশেম ও মনিরুল এদের সঙ্গে আমাদের সম্পর্ক ভালো নয়।” Moreover, at the time of occurrence Nazmul and Ripon were at the shop of DW-2 who deposed: “আসামী রীপন, নাজমুল সহ সব আসামীদের চিনি। ডাইংপাড়া মোড়ে চা মুদিখানা দোকান আছে। বেলা ৩ টায় আমার দোকান খুলি রাত ১০/১১ টায় বন্ধ করি। ২০/১২/২০১৪ ইং তারিখ বেলা অনুমান ৩.০০ টার সময় দোকান খুলি। আমার দোকানে কোন কর্মচারী নাই। নিজেই চা বানাই বিক্রি করি মুদিখানা চালাই শরিফুল ওয়াজেদ, শাহীন, সিরাজুল, রীপন, নাজমুল, আব্দুর রাজ্জাক, হযরত আলী হোসেন এরা বেড়া বাড়ী ডাইং পাড়ার এলাকার লোক এবং আমার দোকানের নিয়মিত কাস্টমার। এরা ২০/১২/১৪ ইং তারিখে আমার দোকানে মাগরেবের ওয়াক্ত থেকে রাত অনুমান ১০.০০ টা পর্যন্ত ছিল।” “২০/১২/১৪ ইং তারিখে আলামীন, নাজমুল, রীপন, মুকুল কেডাম বোড খেলছিল। দোকান থেকে ২০/২৫ হাত দূরে কেরাম খেলছিল। আমার দোকানে সেদিন শরিফুল ওয়াজেদ, নাজমুল, শাহীন, সিরাজুল, রীপন, আলী হোসেন, রাজ্জাক ও হযরত রাত ১০.০০ টা পর্যন্ত বসে ছিল। ঐ দিনগত রাত অনুমান ১০ টার দিকে আমার দোকানে যারা বসে ছিল তারা বলাবলি করছিল যে, আলী হোসেনের ছেলে রাব্বীকে পাওয়া যাচ্ছে না। দোকানের উপস্থিত লোকজনেরা যখন বলা বলি করে তখন আলী হোসেন আমার দোকান থেকে উঠে বাড়ীতে যায়।” There was allegation against IO made by the informant who deposed: “আসামীরা ৮ বিঘা জমি বিক্রয় করিয়া তদন্তকারী কর্মকর্তাকে ম্যানেজ করে। আমার ও আমার সাক্ষীদের জিজ্ঞাসাবাদ সঠিক ভাবে করে নাই বা আমার ও সাক্ষীদের বক্তব্য সঠিক ভাবে লিপিবদ্ধ করে নাই। আমি I.O এর অনাস্থা দিয়া ১০/৩/২০১৫ ইং তাং দরখাস্ত করি।” After taking through us all those evidences the learned advocate submits that both the condemned-prisoners Nazmul and Ripon are entitled to get benefit of doubt.

Mr. Israfi Hossain, the learned advocate then submits that this is a case of no evidence. As because there has been no eye witness of this case, only 2 co-accused Majedur Rahman @ Sagar and Achinur Begum made confessional statements under section 164 of the Code of Criminal Procedure. No collaboration in favour of said statements, and also no witnesses mentioned the names of the two accused namely Md. Nazmul Hoque and Md. Ripon Sarkar alias Liton in their evidence. In the instant case prosecution failed to establish any enmity in between the family of the victim with the convicted appellants Md. Nazmul Hoque and Md. Ripon Sarkar alias Liton or the charge of demanding ransom against them. According to the learned advocate the prosecution has miserably failed to prove any motive for killing the deceased by these accused. He finally submits that it is well settled that in a joint trial of a confessing and non-confessing accused for the same offence, the confession of the co-accused may be taken into consideration against non-confessing accused only along with the other substantive evidence or independent corroboration for the purpose of finding him guilty of the offence. In the instant case, Md. Nazmul Hoque and Md. Ripon Sarkar alias Liton are convicted only on the basis of two confessions of the co-accused, which is not tenable in the eye of law. In support of his submissions he cited the decisions reported in 60 DLR page 457 and 591, 44 DLR 136, 13 MLR (AD) 121 and 269.

Mr. Md. Habib Rabbani the learned, Advocate appearing for the condemned prisoner Md. Majedur Rahman alias Sagar, submits that the trial of the condemned prisoner Md. Majedur Rahman alias Sagar was held without jurisdiction as at the time of commission of

offence this condemned prisoner was a minor of around 16 years of age. As per Shishu Ain 2013 no court other than Shishu Adalat can try a Shishu in conflict with law. He then submits that at the time of examination under section 342 of the Code of Criminal Procedure this condemned prisoner submitted written statement along with the relevant documents of his age such as birth certificate, S.S.C certificate with marksheet, J.S.C certificate along with marksheet, testimonial certificate issued by the concern head-master, S.S.C examination registration card and S.S.C examination admit card issued by the head-master of the school. He further submits that the learned Judge of the trial court kept with record all these documents without consideration though as per Shishu Ain, 2013 the learned Judge was bound to decide whether at the time of commission of offence this condemned prisoner was a Shishu (child) or not.

In support of his contention the learned Advocate cited decision of the case of Shah Alam and others-Vs-the State reported in 42 DLR (AD) 31. He then submits that the condemned prisoner was arrested on 26.12.2014 at about 00.45 hours but was produced before the Magistrate on 27.12.2014 at about 12.00 PM, beyond the statutory period of 24 hours for which his confessional statement was not made voluntarily and cannot be considered as true. In support of his contention he also cited the case of Abul Kashem and others-Vs-The state reported in 1996 BLD 112 and the case of Faruk Mahajon and others-Vs-The State reported in 1997 BLD 15.

The learned advocate further submits that ransom was demanded from a Mobile Phone bearing SIM No.

01987239668 but this SIM was not sized. He then submits that though charge was framed under section 7 and 8 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 along with section 302/201/34 of the Penal Code but the learned Judge mentioned in the judgment that charge was framed under section 302/201/34 of the Penal Code which suggest that the learned Judge did not apply his judicial mind. He further submits that admittedly there was no eye witness and the condemned prisoner has been sentenced to death only on the basis of his confession and he is in the custody since his arrest, that is, early morning of 26.12.2014. He finally submits that the prosecution has failed to prove their case beyond reasonable doubt but based only on the confession which is a weakest type of evidence. The learned Advocate finally submits that since the trial of this condemned prisoner was held without jurisdiction, the judgment and order of conviction and sentence passed against him is not at all maintainable but this Court as an Appellate Court should not send the case for remand to be tried again by a Court of competent jurisdiction considering the principle enunciated in the case of Asiman Begum-Vs-State reported in 51 DLR (AD) 18.

Though convict-petitioner Mst. Achinur Begum filed Criminal Miscellaneous Case No. 32619 of 2018 before this Court under section 561A of the Code of Criminal Procedure but Mr. Md. Khurshid Alam, learned Advocate did not appear during hearing though it was in the list for several days and only appears today before this court when the matter was taken up for delivery of judgment.

We have heard the learned Advocates, perused the impugned judgment and order along with the Lower Court

Records including the depositions and other relevant materials on record.

Now, let us see how far the prosecution has been able to prove the case. Admittedly there is no eye witness of either abduction or killing of the deceased boy Md. Fazle Hossin @ Rabbi. The prosecution relied upon the judicial confessions of two accused namely Md. Majedur Rahman @ Sagar and Mst. Achinur Begum and extra judicial confessions of accused Md. Nazmul Hoque and Md. Ripon Sarker @ Liton to the police along with circumstantial evidence.

We have already noticed that condemned-prisoner Md. Majedur Rahman @ Sagar in his judicial confession gave vivid description of how the deceased boy was abducted by himself along with condemned-prisoners Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton. In that confession it is also stated that how the abducted boy was killed by them and thereafter with the help of convict Mst. Achinur Begum's mobile set demanded ransom to the father of the deceased boy. In her judicial confession Mst. Achinur Begum described that after abducting the deceased condemned-prisoners took him to her house and keeping her mum on arms point locked her door from outside took away the deceased boy and then after sometime she heard a voice of "ish". On her outcry someone unlocked her door from outside and then saw that Liton and Nazmul were washing blood from the 2 Hashua by the water of her tube-well and Sagar was standing beside them. On her query about abducted boy they indicate that they cut throat him and asked not to disclose it to anyone or else would kill her and her husband. Since she heard that both Nazmul and Liton committed murder in Dhaka, she did not dare to say it

to anyone. This convict further said in her confession that her step son Sagar told her that using her phone set changing SIM those 3 condemned-prisoners demanded ransom to the father of deceased through mobile phone of Shahabuddin.

Condemned-prisoner Sagar in his confession gave a graphic description of the abduction of deceased boy and subsequent event of killing and demanding of ransom. He said that he used to talk to Fazle Hussain Rabbi regularly as he used to consider him as his younger brother. On 19/12/14 after Friday prayer Ripon and Nazmul made a plan and asked him to take Rabbi to an empty place and on his denial threatened to kill him. Later they offered him to give Tk-50,000/- if he do the job. The next day i.e. 20/12/14 in the evening, Ripon and Nazmul met him on the street near his house saying Rabbi is at Jahangir's intersection. As per their instruction this confessing accused went there and talked to Rabbi and in a false pretention of his personal problem brought Rabbi to an empty place on the east side of his house. As soon as they got into the empty place, Ripon knocked him down and hit Rabbi in the back of the head with the Hashua in his hand. When Rabbi fell down, Nazmul grabbed Rabbi's mouth and throat, suffocated him and Nazmul severed the head of Rabbi with the Hashua in his hand. Seeing the brutal murder he peed and defecated ruining his clothes for which Ripon and Nazmul asked him to go home and change the clothes. Surprisingly this confessing accused went home and after changing his clothes again went back to the place of occurrence and saw Nazmul and Ripon putting Rabbi's body in a jute sack and then Nazmul by a spade tried to vanish the blood that was on the

ground. Ripon handed over a torch light to him and the other two then carried the corpse to a stream about 500 yards east of where Rabbi had been killed. He followed them with the light. Then they buried the corpse of Rabbi and threw the two Hashua into the bettle garden of Nazmul, about 100 yards away from where the body was buried, and threw the sack pieces in the nearby jungle and at around 10.00 pm everyone went to each other's house. This condemned-prisoner further stated that on next morning i.e. on 21/12/14, Ripon and Nazmul asked him to take his mother's mobile phone in the afternoon and he obeyed. After going there, Ripon took the mobile phone set and Nazmul took out a bangla-link SIM whose number probably was 01987239668 and called one Ali Jannat @ Mukta and Ripon asked Mukta to give the used mobile number to Rabbi's father but denied. Then they went their respective homes. These 3 condemned-prisoners met again next evening and in the same way called accused Shahabuddin to contact Rabbi's father who obeyed and Ripon demanded Tk-10 lac as ransom admitting abduction of Rabbi and then Ripon hung up the phone. The next day evening, at the same place by the previously used Bangla-Link SIM asked for the same amount of ransom. Then Nazmul took out the SIM and gave back his mobile set. Thereafter all of them went their respective homes. This confessing accused said that while talking to Rabbi's father, Ripon did not disclose his identity and Rabbi was killed between 06.30 and 07.00 in the evening on 20.12.14, Saturday.

If we analyse the two above mentioned confessions then we get a clear picture that how, when and where the deceased boy was abducted and killed. Now, we have to see whether the confession was true and voluntary as

because it is well settled that on the basis of confession conviction can be passed against the maker if it is voluntary and true. Condemned-prisoner Md. Majedur Rahman @ Sagar was arrested on 26.12.14 at about 2.00 am and was produced before the learned Magistrate for recording confession on the next day at about 12.00 am. PW-18 Md. Moktagir Alam, the learned Magistrate who recorded the confession deposed in his examination in chief that he has given the accused 3 hours time for reflection and ensured that no presence of police within his sight. He also cautioned the accused that accused was not bound to confess and he certified that the accused made confession voluntarily which the Magistrate believed as true. In his cross examination the learned Magistrate stated that he did not see any mark of injury and denied the suggestion that the accused was tortured for which he could not walk properly. This condemned-prisoner did not adduce any witness on his behalf though has submitted written statement under section 342 of the Code of Criminal Procedure along with some documents relating to his age. In his 342 statement he brought allegation of torture. The statement under this section is not evidence within the meaning of section 3 of the Evidence Act. However, it is to be considered along with the evidence and circumstances, and if the statement of the accused gets support from the evidence on record, the court has to give due weight thereto. This view is in conformity with the decision reported in 42 DLR (AD) 31. In the present case the accused did not submit any document relating to his torture or adduced any witness. On the other hand the recording Magistrate specifically stated that he did not see any

mark of injury on his body and denied any suggestion of observing any mark of torture. This accused was even not taken to the police custody for remand. After arrest this accused was produced before the Magistrate within statutory period and he made the confession giving vivid description of the occurrence. Moreover, PWs-1, 9, 10 and 17 deposed that on pointing of this accused Sagar along with accused Nazmul and Ripon the dead body of Rabbi was recovered. Beside that most of the incriminating materials such as the 2 Hashua, blood stained electric bulb holder were recovered from the room of this confessing accused.

Is there any contradiction between the confessional statements made by accused Md. Majedur Rahman @ Sagar and his step mother Mst. Achinur Begum? We don't think so. Because in his confession Sagar described the entire episode of the occurrence starting from planning of abduction of deceased boy Rabbi with condemned-prisoners Nazmu and Ripon, then how they abducted the boy and took him to 2nd place of occurrence where they killed him and thereafter how they brought the dead body to the 3rd place of occurrence and covered the dead body and throwing the weapons to the bettle garden of Nazmul. While Mst. Achinur Begum described the occurrence what she saw such as taking the boy to her house and locking her door took the boy away and she heard a sound of "Ish" and after unlocking her door she saw those 3 accused Sagar, Nazmul and Ripon washing the blood and on query the accused indicate the killing of the boy and then keeping the weapons beneath the bed of accused Sagar who is her step son. Both the confessing accused admitted that using the mobile set of Achinur Begum accused demanded ransom to the father

of the deceased. We find some omissions in the confessions of both the accused but no contradiction which can be considered fatal to the prosecution case.

Mst. Achinur Begum like her step son Sagar claimed that she was compelled to make confession out of police torture. She also made such allegation in her written statements under section 342 of the Cr.P.C but did not adduce any witness or produce any document. We have already discussed the edidentiary value of such statements and the same principle is to be applied in her case. The evidence does not find any support of her claim of torture. Considering all these aspects of the case we have no hesitation to hold that both the confessions made by the condemned-prisoner Md. Majedur Rahman @ Sagar and convict-petitioner Mst. Achinur Begum are true and voluntary.

Condemned-prisoners Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton did not make any confession. Admittedly there is no eye witness. The trial court convicted them based on confessions of two co-accused along with circumstantial evidence. According to section 30 of the Evidence Act when more persons than one are being tried jointly for the same offence, and a confession made by one of such persons affecting himself and some other of such persons is proved, the Court may take into consideration such confession as against such other of such persons as well as against the person who makes such confession. The section merely provides that the Court may take into consideration such confession as against the co-accused, as well as against the maker. Provided that more persons than one are being tried jointly, that the joint trial is permissible by the law and that the joint trial is for the same offence, or

for its abetment or attempt. It is well settled by a catena of decisions of our apex court as well as of this subcontinent that confession of an accused may be used as against other co-accused in the same trial but it is for a limited purpose. Confession of a co-accused itself is not evidence but it may be used as such if it is found to be true and voluntary as against other co-accused not as a solitary basis but for the purpose of lending assurance to any other evidence found against him. We are to examine the confessional statement in the light of the circumstances under which it is made and the other evidences on record corroborating the chain of circumstances as narrated by the accused before the Magistrate in his confession and this corroboration need not always be in material particular as even a general corroboration or corroboration by medical evidence would be considered to be enough. However, in a very rare and exceptional case of Shukul Ali and others Vs. State reported in 74 DLR (AD) 11 our Appellate Division held: "... we are of the view that the confessional statement of a co-accused can be used for the purpose of crime control against other accused persons even if there is a little bit of corroboration of that confessional statement by any sort of evidence either direct or circumstantial."

In the light of the long settled legal position as stated above let us consider whether there is any evidence beside being the two confessions made by two co-accused in the present case against condemned-prisoners Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton. We have already noticed that there is no eye witness of either abduction or murder of deceased boy Fazle Hossain @ Rabbi. PW-1, the informant and father

of the deceased deposed that on 25.12.14 at night police arrested Kasem, his wife Achinur and his son Sagar and then at late night police arrested Liton and Nazmul. On 26.12.14 in the morning police recovered the dead body of Rabbi on the pointing of the accused, 500 yards away of Kashm's house. In cross-examination he denied the suggestion put by these condemned-prisoners that it is not true that the dead body of his son was not recovered on their showing. So, the dead body which was hidden was recovered on the showing of these two condemned-prisoners as claimed by PW-1. This version of the PW-1 is supported by PW-9, Md. Sajedul Islam and PW-10, Md. Abul Hossain Khan. PW-17 also stated that these two accused admitted to him that they have covered the dead body after killing and on the pointing of accused Sagar the dead body was recovered. He further stated that he seized the incriminating materials used in killing on the pointing and identifying by these accused with accused Sagar. The medical evidence also lends support the true version of the confession made by co-accused Sagar whose confession is inculpatory in nature. The defence case as it can be gathered from the trend of cross examination and depositions of the defence witnesses beside being that of total innocence, two other specific case of enmity and alibi. Dw-1, Md. Montaj Ali who is a close relative of both of these accused tried to bring a case of enmity between these accused with the family of accused Kasem in his chief but in cross he could not be firmed in his version. DW-2, Md. Jahangir Alam who is also a close relative of these accused in his examination in chief tried to bring a case of alibi stating that these two accused were

present at his shop from Magrib prayer to 10 pm but in his cross examination he stated that it was not possible for him to observe when and who come and go at his shop. In that view, defence could not prove the allegation of enmity or alibi of not possible to be present at the place of occurrence at the time of commission of offence. So, in considering the confession made by Md. Majedur Rahman @ Sagar coupled with the evidence as discussed above, we are of the view that these condemned-prisoners namely Md. Nazmul Hoque and Ripon Sarkar @ Liton are equally liable for killing the deceased boy after abducting him.

Considering the facts and circumstances we have no hesitation to hold that all the 3 (three) condemned - prisoners namely Md. Majedur Rahman @ Sagar, Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton are guilty of the offence under section 7 and 8 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 and also under section 302/201/34 of the Penal Code. The learned Judge of trial tribunal though found all these 3 (three) condemned-prisoners guilty of offence in all the above mentioned sections of laws but sentenced them to death under section 302/34 of the Penal Code on the finding that considering the capital punishment awarded against them she was not inclined to pass any other sentence on them.

The advocate for the condemned-prisoners Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton submitted that both of them were students at the time of commission of offence. However, it appears from record that both of them were at their tender age of 20 years. Both of them are in the jail custody since their arrest on early morning of 26.12.14 and are in condemned cell

for more than 6 years. Considering all these aspect we are of the view, justice would be met if their sentence is commuted to imprisonment for life instead of death awarded under section 302/34 of the Penal Code along with a fine of taka 10000/- each in default to suffer 6 (six) months more. We are also not inclined to pass any more sentence under section 7/8 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 or under section 201 of the Penal Code.

We have considered the documents submitted by the condemned-prisoner Md. Majedur Rahman alias Sagar regarding his age, i,e birth certificate, S.S.C certificate with markshit, J.S.C certificate along with markshit, testimonial certificate issued by the concern head-master, S.S.C examination registration card and S.S.C examination admit card issued by the head-master of the school, original of which have been submitted before this Court. All those documents consistently show that the date of his birth was 19.03.1998. All those documents were submitted before the trial court in time, i,e at the time of examination under section 342 of the Code of Criminal Procedure but unfortunately the learned Judge did not consider all those documents. Learned judge of the trial court could consider those either by herself or send the matter to the Shishu Adalat to determine the age of the accused. We have examined all these documents and found that the date of birth of the accused is 19.03.1998 in all documents; which means at the time of commission of offence the condemned prisoner was a minor boy (Shishu) of 16 years and 9 months old. According to section 3 of the Shishu Ain, 2013 notwithstanding anything contained in any other law for the time being in force, the provision of

Shishu Ain shall prevail. As per section 4 of the Ain all persons up to the age of 18 (eighteen) years shall be regarded as children for the purposes of the Ain. According to sub-section (1) of section 17 of the Ain if the child in conflict with the law is involved in any case under any law whatsoever, Shishu Adalat shall have exclusive jurisdiction to try the case. This sub-section has been repealed on 14.11.2018 but at the relevant time it was very much in force. And in that view of the matter, the trial of Md. Majedur Rahman @ Sagar was held without jurisdiction as no court other than Shishu Adalat has any jurisdiction to try a Shishu of any offence whatsoever.

Now the question is whether the case should be sent back for fresh trial so far it relates to the accused Md. Majedur Rahman @ Sagar by the Shishu Adalat after framing charge under sections 7/8 of the Nari-O-Shishu Nirjatan Daman Ain read with sections 302/201/34 of the Penal code.

The High Court Division as the Appellate Court has been given the power to hear the appeal from the judgment or any order passed by the Shishu Adalat under section 41 of the Shishu Ain, 2013 and section 42 of the Ain provides the applicability of the provisions of the Code of Criminal Procedure.

In the present case The Druto Bichar Tribunal awarded death sentence to 3 accused hence the Tribunal has to refer the case to the High Court Division as per provision of section 374 of the Code of Criminal Procedure and without the confirmation by the High Court Division the sentence shall not be executed. After receiving the proceedings under section 374 of the Code of Criminal Procedure the High Court Division

may take recourse as provided under section 375 of the Code which provides as under:

375.(1) If when such proceedings, are submitted the High Court Division thinks that a further inquiry should be made into, or additional evidence taken upon, any point bearing upon the guilt or innocence of the convicted person, it may make such inquiry or take such evidence itself, or direct it to be made or taken by the Court of Session.

(2) Unless the High Court Division otherwise directs, the presence of the convicted person may be dispensed with when such inquiry is made or such evidence is taken.

(3) When the inquiry and the evidence (if any) are not made and taken by the High Court Division, the result of such inquiry and the evidence shall be certified to such Court.

If the High Court Division thinks that it does not need to direct further inquiry to be made or additional evidence to be taken then it will proceed as per section 376 of the Code of Criminal Procedure which provides as under:

376. In any case submitted under section 374, the High Court Division-

(a) may confirm the sentence, or pass any other sentence warranted by law, or

(b) may annul the conviction, and convict the accused of any offence of which the Sessions Court might have convicted him, or order a new trial on the same or an amended charge, or

(c) may acquit the accused person:

Provided that no order of confirmation shall be made under this section until the period allowed for preferring an appeal has expired, or, if an appeal is presented within such period, until such appeal is disposed of.

In the case of Asimon Begum Vs the State reported in 51 DLR (AD) 18 our apex court did not approve sending back the case on remand. In that case the accused stood trial to face charge under section 10(1) of the Nari-O-Shishu Nirjatan (Bishesh Bidhan) Ain, 1995 and Nari-O-Shishu Nirjatan Bishesh Adalat convicted the accused under section 304 part I of the Penal Code. On appeal the High Court Division set aside the order of conviction on the ground that the trial was without jurisdiction inasmuch as the Nari-O-Shishu Nirjatan Bishesh Adalat could only try an offence under the said Ain of 1995 and not an offence under the Penal Code and the High Court Division accordingly sent back the case on remand to the learned Sessions Judge for fresh trial. Against the said order of remand, leave

was granted and after hearing the Hon'ble Appellate Division sent back the case to the High Court Division to consider the case on merit. It was held that an accused can be tried for a second time by an appropriate court. The better view is that when it is found after a full trial that there was a mis-trial or trial without jurisdiction, the court of appeal before directing a fresh trial by an appropriate court should also see whether such direction should at all be given in the facts and circumstances of a particular case.

Our Appellate Division in a number of cases, including reported case of 67 DLR (AD) 54 maintained the conviction of the High Court Division passed under section 302 of the Penal Code altering the conviction under section 11(Ka) of the Nari-O-Shishu Nirjatan Daman Ain, 2000. In some of the cases including the case of Anarul @ Anarul Huq Vs State reported in 67 DLR (AD) 172 our Appellate Division invoking the jurisdiction under Article 104 of our Constitution to do complete justice maintained such conviction though the trial was held without jurisdiction.

In the present case, Md. Majedur Rahman @ Sagar was arrested on 26.12.14 and tried by the Druto Bichar Tribunal which awarded death sentence upon him. In the mean time, this accused Md. Majedur Rahman @ Sagar is languishing in jail since his arrest, more than 9 years and in condemned cell for more than 6 years. According to section 34 of the Shishu Ain, 2013 the highest punishment can be awarded against a child in conflict with law is 10 years. In such facts and circumstances of the case and position of law no fruitful purpose would be served if we send the case for remand to be tried by Shishu Adalat and as such applying the

principle enunciated by our apex Court in the case reported in 51 DLR (AD) 18 we do not find any reason to sent the case on remand to be tried by a court of competent jurisdiction, i,e the Shishu Adalat. Since we have already observed that the charge under section 7 and 8 of the Nari-O-Shishu Nirjatan Daman Ain read with section 302/201/34 of the Penal Code has been proved against him we maintain the conviction passed by the Tribunal but as per section 34 of the Shishu Ain the highest punishment can be awarded against a child in conflict with law is 10 years. Taking into consideration the offence committed by this accused, our considered view is that he deserves the highest punishment contained in section 34 of the Shishu Ain, 2013.

We have already observed that convict-petitioner Mst. Achinur Begum by letting her Mobile Phone to the condemned prisoner Md. Majedur Rahman alias Sagar who along with condemned prisoners Md. Nazmul Hoque and Md. Ripon Sarkar alias Liton abducted the deceased boy and demanded ransom through that Mobile Phone and thereby she abated the commission of offence of demanding ransom detaining the deceased boy and in that view of the matter she is liable to be convicted under sections 8/30 of the Nari-O-Shishu Nirjatan Daman Ain and be sentenced to imprisonment for life with a fine of taka 10000/- in default to suffer 6 (six) months more. However, the evidences discussed above suggest that the prosecution could not prove the charge against her framed under section 302/201/34 of the Penal Code for which she is acquitted from the charge.

The original certificates submitted by the learned Advocates of condemned-prisoner Md. Majedur Rahman

alias Sagar can be withdrawn, replacing those by submitting attested photo copies.

In the result, the Death Reference is rejected.

Criminal Appeal No. 305 of 2018 preferred by condemned-prisoner Md. Majedur Rahman @ Sagar is dismissed with modification. He is sentenced to 10 (ten) years imprisonment. He is entitled to get the statutory benefit of section 35A of the Code of Criminal Procedure in calculating of his sentence.

Criminal Appeal No. 140 of 2018 preferred by condemned-prisoners Md. Nazmul Hoque and Md. Ripon Sarkar @ Liton is dismissed with modification. Their sentence of death is commuted to imprisonment for life with a fine of taka 10000/- each in default to suffer 6 (six) months more.

Rule issued in Criminal Miscellaneous Case No. 32619 of 2018 preferred by convict-petitioner Mst. Achinur Begum is discharged with modification. She is sentenced to imprisonment for life with a fine of taka 10000/- in default to suffer 6 (six) months more.

Jail Appeal Nos. 08 of 2018, 09 of 2018 and 10 of 2018 preferred by condemned-prisoners Md. Nazmul Hoque, Md. Majedur Rahman @ Sagar and Md. Ripon Sarkar @ Liton are disposed of in the light of the judgment passed above in Criminal Appeal Nos. 305 of 2018 and 140 of 2018.

Send down the lower court's record along with a copy of this judgment at once.

Ashish Ranjan Das, J:

I agree.